Landless, Homeless, Voteless

Reconstruction, Part 1

15 MINUTE HISTORY · NARRATION SCRIPT · 2,524 WORDS · ABOUT 14:35

> ***Driving question:*** *The war was over. Slavery was over. Who got to decide what freedom would actually look like? And why was the land going back?*

Underlined = vocabulary card on screen · *italic* = spoken with emphasis · timestamps are estimates until the voice is recorded

0:00 A Few Acres

Three men on an island in South Carolina wrote a letter to the President of the United States. It came down to one request.

"We wish to have A home if It be but A few acres."

The President had already said no.

This is their letter, from October 1865. Look at the handwriting. These men had been enslaved, in a state where teaching an enslaved person to write was against the law. Henry Bram wrote it anyway. And all three signed their own names.

Here's what happened. That spring, the Civil War ended, and slavery was ending with it. The U.S. Army had given freed families land on islands like this one. They had planted it. Now the government was handing it back to the men who used to own them.

A week earlier, they had summed up where that left them in three words.

Landless. Homeless. Voteless.

So here's the question I want to answer today. The war was over. Slavery was over. Who got to decide what freedom would actually look like? And why was the land going back?

We'll come back to this island. And to those three words.

1:34 Forty Acres

To see how they got that land, go back to January 1865.

The Civil War is almost over. The North, called the **Union**, is winning. The South is 11 states that broke away to form their own country, the **Confederacy**, to protect slavery.

A Union army under General William Tecumseh Sherman has just marched across Georgia to the coast. Thousands of enslaved people left the plantations and followed it. Sherman had no plan for them.

So Sherman and the Secretary of War sat down with 20 Black ministers in Savannah and asked them: what do you want?

Their spokesman was Garrison Frazier, a 67-year-old minister who had bought his own freedom. "The way we can best take care of ourselves," he said, "is to have land, and turn it and till it by our own labor."

Translation: don't give us charity. Give us land.

Four days later, Sherman signed **Special Field Order No. 15**. A strip of coast from South Carolina to Florida, islands included, was set aside for freed families. Up to 40 acres each. The Army lent some of them mules. That's where the phrase comes from: **forty acres and a mule**.

By summer, about 40,000 people were farming that land. Edisto Island was part of it.

But here's the catch. It was a military order, written in wartime. It let them use the land. It didn't make them the owners. And nobody in Washington had decided whether it would last.

2:53 Ten Percent

Putting the country back together has a name: **Reconstruction**. It meant bringing the Southern states back into the Union, and deciding what freedom would mean for about 4 million people who had just been freed.

The first fight of Reconstruction was about who was in charge of it.

Quick refresher. Congress writes the laws. The President signs them, or refuses to. That's called a **veto**. And the Constitution says nothing about how a state that tried to leave comes back in. Nobody had ever needed to know.

President Abraham Lincoln went first. In 1863, he announced a plan. Once 10 percent of a state's voters swore loyalty to the United States, that state could form a new government. It had to accept the end of slavery. And most Confederates would get a **pardon**: an official "you're forgiven," with their rights given back.

That's the **Ten Percent Plan**. It was generous on purpose. Lincoln wanted the war over fast, and Southerners on his side again.

But many in his own party hated it. Lincoln was a **Republican**. Same name as today's party, but a very different one: mostly Northern, and founded to stop slavery from spreading. Its most determined members were the **Radical Republicans**. They wanted to remake the South and protect **freedpeople**, the people who had just been freed.

To them, 10 percent meant nine out of ten voters didn't have to promise anything.

So they passed their own plan, the **Wade-Davis Bill**. A *majority* had to swear loyalty. Lincoln never signed it. He let it sit on his desk until Congress went home, and it died. That's called a pocket veto. A very polite way of saying no.

So the President had one plan. Congress had another. And when the war ended, neither had won.

4:31 The Last Speech

April 1865. The main Confederate army surrenders. The war is all but over.

Two days later, a crowd gathers outside the White House, and Lincoln speaks to them from a window. Most of the speech is about Louisiana, one of the states rebuilding under his plan. But near the end, he says something no president had said in public before.

Some Black men, he says, should be able to vote. Men who were "very intelligent," and men who had served as Union soldiers.

It was a small step. But it was the first one.

Standing in that crowd, according to later accounts, was an actor named John Wilkes Booth. He supported the Confederacy, and he was furious.

Three days later, at Ford's Theatre in Washington, Booth shot Lincoln. Lincoln died the next morning.

Whatever his plan would have become, it died with him.

The man who took his place wasn't even a Republican. He was a Democrat from Tennessee, picked as Lincoln's vice president to show the country could come together. Same name as today's Democrats, but a very different party.

His name was Andrew Johnson.

5:34 Treason Must Be Made Odious

At first, the Radicals thought Johnson was on their side.

He grew up poor. He never went to school. He worked as a tailor. And he hated the rich plantation owners who ran the South, the **planters**.

When the South broke away, Johnson was the only senator from a Confederate state who refused to leave. And in April 1865, he said

"treason must be made odious," meaning hated.

Translation: the planters started this war, and they're going to pay.

But Johnson had owned enslaved people himself. He accepted that slavery was over. He did not believe Black Americans should have equal rights, or the vote.

Congress was on a break until December. So that summer, Johnson made his own plan, alone. It's called **Presidential Reconstruction**.

It was even more generous than Lincoln's. Most white Southerners who swore loyalty got a pardon. The richest men and the Confederate leaders had to ask Johnson personally.

So they did. By the thousands. And he signed. The man who had resented the planters his whole life now had them lining up outside his office to say please.

Here's why that mattered. A pardon gave you your property back. Including land like Edisto Island.

So in October 1865, Johnson sent General Oliver Howard to Edisto to tell the freed families the land was going back. By most accounts, Howard dreaded the trip.

The families picked a committee of three men. They wrote to Howard: "we were promised Homestead's by the government." A **homestead** is a farm of your own. Then they wrote to the President.

Howard wrote back that they were "right in wanting homesteads." But "Congress must meet" first.

In Congress, one man had a plan for exactly this. Thaddeus Stevens, a Radical leader, wanted to take land from the biggest planters and give 40 acres to every freed family. But most Republicans thought that went too far.

Hold onto Stevens. He's about to become Johnson's favorite enemy.

But first, the South was back in charge of itself. What was it going to do?

7:26 Except as a Punishment for Crime

First, the good news. In December 1865, the **13th Amendment** became part of the Constitution.

An amendment is a change to the Constitution itself, and three out of four states have to approve it. This one ended slavery everywhere in the United States.

But look at the middle of it. "Neither slavery nor involuntary servitude, except as a punishment for crime."

Except as a punishment for crime. Hold onto those words.

Under Johnson's plan, the Southern states had elected new governments. They picked many of the same men who had led the Confederacy. Georgia even chose the Confederacy's own vice president for the U.S. Senate.

Then those governments passed **Black Codes**: laws that applied only to Black Southerners, written to keep them working the same fields, on their old owners' terms.

Mississippi went first, in November 1865. Here's how its code worked, in three steps.

One. Every January, a Black worker needed written proof of a job for the whole year ahead.

Two. Without it, they could be arrested as a **vagrant**: someone with no job and no home.

Three. If they couldn't pay the fine, the sheriff could hire them out to whoever paid it. Often, a planter.

And one more rule. Freedpeople couldn't rent farmland outside of towns. So the land wasn't just taken back. It was locked away.

That means a person could be free under the Constitution, be arrested for not having a job, and be put to work without pay. And it was legal.

Because of six words. *Except as a punishment for crime.*

9:00 The Bureau

So who stood between freedpeople and laws like that? Mostly one small government office.

The **Freedmen's Bureau**. Congress created it in March 1865, and it was run by Oliver Howard. Yes, the general from Edisto. Its job was to help the South get from slavery to freedom.

It handed out food and medicine. It made marriages from slavery legal, because under slavery, they hadn't counted. It helped start thousands of schools. Grandparents sat beside their grandchildren, learning to read for the first time.

And it helped families find each other. Under slavery, parents and children had been sold away from one another. Now people placed ads in newspapers. Look at this one, from 1866. It's searching for the children of a woman named Hagar Outlaw. Hundreds of ads like this survive. We know of very few that ended with a family together again.

The Bureau had a harder side too. It pushed freedpeople to sign year-long work contracts with planters, sometimes the same men who had owned them. It helped. It just didn't give them land.

And it was supposed to be temporary. In early 1866, Congress voted to keep it going. Johnson vetoed it.

Then Congress passed the **Civil Rights Act of 1866**. It said people born in the United States were citizens, with the same rights as white citizens: to sign contracts, own property, and go to court. Johnson vetoed that too.

So Congress did something it had never done to a major law. It overrode the President. An **override** takes two-thirds of the House and two-thirds

of the Senate, and the bill becomes law without him.

The Civil Rights Act became law. That summer, so did a new Freedmen's Bureau bill.

10:34 Equal Protection

But a law can be repealed by the next Congress, or struck down by a court. If these rights were going to last, they had to go somewhere much harder to undo. The Constitution.

Congress had already drawn a line. When the South's newly elected members showed up in December 1865, Congress refused to seat them. And every Johnson veto pushed more moderate Republicans over to the Radicals' side.

So in June 1866, Congress sent the states the **14th Amendment**. Its first section does three big things.

One. Anyone born in the United States is a citizen. That overturned the **Dred Scott decision**, an 1857 Supreme Court ruling that Black Americans could never be citizens.

Two. No state can take away anyone's life, liberty or property without a fair legal process. That's **due process**.

Three. No state can deny anyone "the equal protection of the laws." **Equal protection**.

Translation: a state can't have one set of laws for white people and another for Black people.

Sound familiar? That's aimed straight at the Black Codes. *The Black Codes are why this amendment exists.*

The states still had to ratify it. So Johnson told the Southern states to vote it down. And they did. All of them except one: Tennessee. Johnson's home state.

Which must have made for an awkward trip home.

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Quick thing before we go on. If this is helping, hit subscribe. It's free, and unlike the Freedmen's Bureau, it doesn't need an act of Congress to renew.

11:57 Swing Around the Circle

By the summer of 1866, the fight had a deadline. That fall, the country would vote for a new Congress.

And in the South, the violence was getting worse. In May, white mobs, with police joining in, attacked Black neighborhoods in Memphis, Tennessee. In three days, 46 Black people were killed. In July, in New Orleans, a mob attacked a meeting of Black and white Republicans. Dozens more were killed.

Northern newspapers covered both. Northern voters read them.

Johnson's answer was to hit the road. Presidents back then almost never campaigned in person. Johnson went on a speaking tour across the North, nicknamed the **Swing Around the Circle**.

It did not go well. Crowds heckled him. He heckled them back. In Cleveland, someone shouted that they should hang Jefferson Davis, the Confederacy's president. Johnson shot back: why not hang Thad Stevens?

Thaddeus Stevens. The Radical with the land plan. The President of the United States was asking a crowd why nobody had hanged a congressman.

In November, voters answered. Republicans won more than two-thirds of both the House and the Senate. Enough to override anything Johnson vetoed.

So, back to the question. Who decides? From now on, Congress does.

And Congress's plan included sending the army back into the South.

13:07 Landless, Homeless, Voteless

So let's go back to the question. The war was over. Slavery was over. Who got to decide what freedom would look like?

At first, the President. Lincoln planned to be generous, to win the South back fast. Johnson was even more generous to the men who had led it. He pardoned them and gave back their land.

The South used that freedom to pass the Black Codes. That pushed Congress to fight back with the Civil Rights Act and the 14th Amendment. And when Johnson fought that, voters handed Congress control.

Johnson's supporters saw it differently. To them, he was following the Constitution: let the states run their own affairs, and heal the country fast. To the Radicals and to freedpeople, he had handed the South right back to the men who had led it out of the Union.

And Edisto Island? Most of the freed families there lost the land. Many stayed and worked the same fields, now for the men who used to own them.

Remember their three words? *Landless. Homeless. Voteless.*

By the end of 1866, they had something new. The law. Slavery was gone from the Constitution, and the 14th Amendment was on its way.

What they still didn't have was the land.

But one of those three words was about to change.

Next time: Congress sends the army back into the South. And a Black minister from Mississippi takes a seat in the U.S. Senate that Jefferson Davis once held.

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